



NATIONAL ENVIRONMENT MANAGEMENT AUTHORITY

ENVIRONMENT MANAGEMENT AND COORDINATION ACT, Cap 387

Experts License - Associate/Lead Experts

License No.:

NEMA/ENVIS/EL/1030

Application Reference No:

NEMA/ENVIS/ELA/05901

M/S Fabian Kitui Sitaka

of P.O.BOX 229, 50100,KAKAMEGA

is licensed to practice in the capacity of a **Associate Expert**

registration number **13918**

in accordance with the provision of the Environmental Management and Coordination Act cap 387.

Issued Date: **11th February 2026**

Expiry Date: **31st December 2026**

David Ongare

For DIRECTOR GENERAL

National Environment Management Authority

P.T.O.



ISO 9001 : 2015 Certified

TERMS AND CONDITIONS

Conditions For Licensing

1. This license expires on 31st December of the year it is issued.
2. The expert shall comply with code of practice and Professional Ethics for EIA/EA experts.
3. The expert shall comply with the attached conditions.

General Conditions

1. All Environment Experts certified and registered in the accordance with the provision of relevant Regulations, may establish professional associations to complement and implement the objectives of the Code of Practice.
2. An Expert shall act professionally, accurately, fairly and in an unbiased manner in undertaking his work.
3. The Director General, in consultation with relevant stakeholders, may from time to time issue guidelines for the proper conduct of registered Environmental Impact and Audit Experts.
4. Every Environmental Expert shall each year attend at least two relevant seminars organized by the authority for the purposes of improving the professional expertise of its members.
5. No Expert shall exploit the inexperience, lack of understanding, illiteracy or other lack of technical knowledge in environmental matters of a project proponent, owner or the public, for his personal gain.

Receiving Instructions

1. No Environmental Expert shall act for any project proponent unless he has received written instructions from such project proponent or his authorized agent.
2. An Environmental Expert shall not unreasonably delay the carrying out of instructions received from the project proponent of his authorized agent.
3. An Environmental Expert shall discharge his responsibilities to the project proponent with due diligence and integrity.
4. An Environment Expert may terminate a contract on carrying out an environmental impact assessment or audit as stipulated in section 8 of the Code of Practice and Professional Ethics of EIA/EA Experts.

Carrying out an EIA/EA

1. An Environmental Expert shall follow relevant regulations or guidelines and directives issued by the Authority.
2. As Environmental Expert shall take due care and diligence to collect the relevant data to address the significant environmental issues in the various stages of the assessment or audit process and fully acknowledge the source of any data that is not the result of his findings.

3. Environmental Expert shall consult widely with all the relevant agencies, stakeholders, interested parties and the general public on

all the matters that likely to affect them.

4. An Environmental Impact Assessment or Audit Report shall be based on the Terms of Reference of the Assignment and shall include

all the matters relevant to the findings of the study, all the relevant matters are required by statutory provisions, and must be guided

by professional standards and judgments.

Responsibility of Lead Environmental Experts

1. (1) An Environmental Lead Expert shall be responsible for the documents prepared by him/her on behalf of the project proponent.

(2) An Environmental Expert shall guide the proponent throughout the preparation of the environmental impact assessment and/or

environmental audit, and/or during implementation of the Environmental Management Plan.

(3) An Environmental Expert shall disclose to a client or employer any relationships of conflicting or competing interests that may

influence his judgment prior to the carrying out of work.

Misconduct of Environmental Experts

1. An Environmental Expert who contravenes a provision of Code of Practice and Professional Ethics shall be deemed to have

committed professional misconduct and shall be subject to disciplinary action by the Authority as appropriate and as stipulated in

the Code of Practice and Professional Ethics of Environmental Experts.

Disciplinary Action

1. Where an Environmental Expert is found to have committed professional misconduct by the Environmental Experts' Advisory

Committee/Authority shall be punished as stated under section 19 of the code of Practice and Professional Ethics.

Appeals

1. (1) An Expert aggrieved by the decision of the Authority may apply for the review of such decision in the High Court.

(2) If an application for judicial review shall not have been filed at the expiry of 30 days from the date of the decision of the

Authority, the director General may publicize the disciplinary action taken against the Expert.